

**HIGH COURT OF TRIPURA
AGARTALA**

Tr.P.(C) No.32/2019

Smti. Supriya Acharjee

-----Petitioner(s)

Versus

Sri Bapi Acharjee

-----Respondent(s)

For Petitioner(s) : Mr. A. Acharjee, Advocate.

For Respondent(s) : Mr. Dipankar Sharma, Addl. G.A.

HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI

Order

29/01/2020

This transfer petition is filed by the wife. She requests that the proceedings for divorce instituted by the respondent husband before the Family Court, Agartala, West Tripura being case No. T.S. (Divorce) 544 of 2019 be transferred to the Court of District Judge, South Tripura, Belonia. Learned counsel for the petitioner submitted that the wife is residing at Srirampur which is at a distance of nearly 115 Kms. from Agartala where the Family Court is situated. She is suffering from Tuberculosis. She is not receiving any maintenance from the husband. It would, therefore, be very difficult for her to attend to the said proceedings on regular basis. Learned counsel for the husband submitted that previously when he had gone to the residence of the wife, he was assaulted by her relatives.

The reasons cited for transfer of the proceedings are acceptable. Further it may be noted that the wife is residing at Srirampur which is at a fair distance away from Belonia where the

District Court is situated and where I propose to transfer the said proceedings. Husband, therefore, need not fear for his safety at the hands of the petitioner's relatives.

Under the circumstances, Family Court proceedings No. T.S. (Divorce) 544 of 2019 may be transferred from the Family Court, Agartala, West Tripura to the Court of District Judge, South Tripura, Belonia.

Petition is disposed of accordingly.

Pending application(s), if any, also stands disposed of.

(AKIL KURESHI), CJ

Pulak

